

Subject: Autism Act 2009, Breach of Equality Act 2010 and FPR Part 3A – Request for Ministerial Oversight and Remedy (CA-2024-001342 / BV20D01752)

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Priority: High

Attachments: Ministerial Letter (3 November 2025).pdf, CA-2024-001342_NZahmoul_Application_and_Bundle_20Oct2025 with pagination.pdf, Minister Stephen

**Re: Autism Act 2009, Breach of Equality Act 2010 and FPR Part 3A –
Request for Ministerial Oversight and Remedy (CA-2024-001342 /
BV20D01752)**

Dear Rt Hon David Lammy MP, Dear Rt Hon Wes Streeting MP,

Please find attached my Ministerial Letter dated 3 November 2025, submitted jointly to the **Secretaries of State for Justice and for Health and Social Care**.

It concerns systemic breaches of equality and participation duties in the family justice system, arising from the unlawful revocation of my **FPR Part 3A** participation measures following the February 2024 trial (case references CA-2024-001342 / BV20D01752).

The judgment of 18 April 2024 mischaracterised my autism-related presentation as “obsessive” (para 64), despite more than twenty transcript references to my diagnosed conditions. The subsequent costs order of 24 May 2024 further penalised me for behaviour directly linked to my disability. Both outcomes occurred after my participation measures were revoked without notice or review.

Despite repeated correspondence with the **Ministry of Justice** and **HMCTS** (20–31 October 2025), I have received only procedural deflections. **The continued refusal to engage substantively has caused significant deterioration in my health and underscores the complete absence of enforcement or accountability under the Autism Act 2009.**

The lack of accountability was widely identified as the main problem in the **House of Lords Autism Act Committee** oral evidence sessions.

- “There is no accountability for the human rights abuses that autistic people are experiencing as we speak right now, today. There are few effective complaints processes. We need the creation of concrete processes to achieve accountability. That is vital.” ***Dr Mary Doherty***
- “Finally, we have to have accountability. People have to take ownership when things go wrong. We have to ensure that clear systems are in place to monitor how services are performing for autistic people and, of course, the consequences when they fail. It is not enough to have policies; we need measurable outcomes and a lived experience, leadership and culture that prioritise equality, safety and human rights.” ***Paula McGowan***
- “The Autism Act is unique in one respect — it places duties without attaching accountability. No minister, no department, and no agency can be held to account for its failure.” ***Dr. James Cusack, Autistica***
- “We know that the Equality Act provides individual remedies, but there is no way to enforce systemic discrimination — no way to compel compliance when institutions fail.” ***Prof. Martin Knapp, LSE***

- “There is no line of accountability anywhere in the system. The Autism Act has no enforcement mechanism, and no statutory body is required to deliver its aims.” **Tim Nicholls, NAS**
- “We have 15 years of strategies, but no one can be held responsible when they are not implemented.” **Adam Micklethwaite, Autism Alliance**
- “This is not just inefficiency; it is structural discrimination. When the system consistently excludes autistic people and then blames them for not fitting in, that is a breach of the Equality Act.” **Fazilet Hadi, DRUK**
- “The UN found the UK guilty of grave and systematic human rights violations against disabled people. Nine years later, nothing has changed for autistic adults.” **Fazilet Hadi**
- “We need an enforcement architecture, not just another strategy. Otherwise, autistic people will keep falling through the cracks while government departments trade responsibilities.” **Jolanta Lasota, Ambitious about Autism**
- “The evidence could not be clearer — lack of accountability means failure is baked into the system.” **Dr. James Cusack**
- “The Autism Act places duties without attaching accountability.” **Dr. James Cusack**
- “Crucially, the Act has not proven to be enforceable at any level – from individuals to ministers – and no person or agency has been made accountable for its delivery or, critically, its failure.” **Tom Purser, Autism Action**
- “The justice system remains the least adapted public service for autistic people. There is no enforcement, no monitoring, and no accountability for breaches.” **Autism Commission Alliance**

In light of **Minister Kinnock**’s own statement to the Committee that “the Secretary of State could commence proceedings or require full account from a body failing to follow statutory guidance,” **I am formally inviting ministerial intervention to address these breaches.**

This is not a judicial complaint, but a request for ministerial oversight and institutional accountability for administrative and equality-law failures within the court system.

I respectfully request:

- A joint ministerial inquiry into the failures described;
- Confirmation of a mechanism for remedy and redress; and
- Referral of this matter to the Equality and Human Rights Commission for independent review.

Please confirm acknowledgment of this correspondence. I am available to provide all

evidence and annexes electronically or in person.

Yours sincerely,

Nadia Zahmoul

Email: nadia@rosekross.com

Attachments:

1. Ministerial Letter – Breach of Equality Act 2010 and FPR Part 3A (3 Nov 2025)
2. CA N244 Application and Bundle (20 Oct 2025)
3. Minister Kinnock Statement (Aug 2025)
4. Stage 3_Escalation Bundle_31Oct2025.pdf